

SOLVED PRACTICE WORKBOOK

Governor CM State Council - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

Governor CM State Council	
REFRESHED TEACHING NAVIGATION - BASICS/CODE FIRST	
01 CONSTITUTIONAL DESIGN: ONE STATE EXECUTIVE, TWO POLITICAL IDENTITIES The decision context is a full governing process/constitutional form.	02 APPOINTMENT, QUALIFICATIONS, OATH AND CONDITIONS The decision context is between no other office of profit and Article
03 COMMON GOVERNOR, TERM, PLEASURE, RESIGNATION, TRANSFER AND CONTINUITY The decision context is between Article 156(2). Five-year term, subject	04 ARTICLE 361 IMMUNITY AND ACCOUNTABILITY The Governor is a component of the Legislature under Article 168 but
05 GOVERNOR'S POWERS: COMPLETE CLASSIFICATION The decision context is between State executive action is formally	06 ARTICLE 163: AID, ADVICE AND THE NARROW FIELD OF DISCRETION The decision context is between Article 163(1) establishes aid and
07 CASE-LAW CONTROL: PROPOSITION, SIGNIFICANCE AND LIMITATION Case law control proposition, significance and limitation operates	08 CHIEF MINISTER APPOINTMENT AND GOVERNMENT FORMATION Article 164(1) says the Chief Minister is appointed by the Governor
09 FLOOR TEST: TRIGGER, PROCESS AND LIMITS Subhash Datta requires objective material and rejects use of a floor	10 DISMISSAL, DISSOLUTION AND CARETAKER GOVERNMENT The decision context is between his viable alternative
11 ARTICLE 356 RECOMMENDATION AND THE FEDERAL FIREWALL The decision context is between no restoration possible if action is voided	12 ARTICLES 168, 171 AND 174-176: GOVERNOR INSIDE THE LEGISLATIVE PROCESS Under Indian Union, Article 174(1)(b) powers are normally exercised
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Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Governor CM State Council - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQ loop - balanced deterministic non-patterned placement

OM1. Mode of selection

Which statement correctly describes the constitutional selection of a State Governor?

A. An electoral college of State legislators and MPs elects the Governor. B. The President appoints the Governor by warrant. C. The Chief Minister nominates and the High Court confirms the Governor. D. The State Assembly elects the Governor by proportional representation.

Answer: B.

Explanation: [FACT] Article 155 provides presidential appointment. There is no gubernatorial electoral college.

OM2. Common Governor

The Constitution permits:

A. the same person to be appointed Governor of two or more States. B. one State to have two Governors simultaneously with equal authority. C. a Chief Minister to serve automatically as Governor of another State. D. Parliament to merge two States merely by appointing a common Governor.

Answer: A.

Explanation: [FACT] The proviso to Article 153 permits a common incumbent. [LIMIT] The States and their ministries remain constitutionally distinct.

OM3. Tenure

Which formulation is most accurate?

A. A Governor can neither be transferred nor reappointed. B. The five-year term is subject to the President's pleasure, and the Governor continues until a successor enters office. C. The Governor serves until removed by the State Assembly. D. The Governor has an unqualified five-year tenure.

Answer: B.

Explanation: [FACT] Article 156 combines pleasure, five years and continuity. Five years is not a fixed enforceable lease.

OM4. Oath

Who ordinarily administers the Governor's oath?

A. Chief Minister. B. President of India. C. Chief Justice of the High Court exercising jurisdiction, or the available senior judge in the Chief Justice's absence. D. Speaker of the Legislative Assembly.

Answer: C.

Explanation: [FACT] Article 159 supplies the High Court-based oath arrangement.

OM5. Article 361

Which is protected during a Governor's term?

A. No civil claim can ever be brought for personal acts. B. Every State-government action becomes immune from review. C. No criminal proceeding may be instituted or continued against the Governor. D. The Governor acquires legislative speech privilege as a House member.

Answer: C.

Explanation: [FACT] Article 361 supplies personal criminal-process and arrest protections. [LIMIT] It does not erase review of governmental action.

OM6. Legislative privilege

Why does Article 194 speech immunity not automatically attach to the Governor?

A. Article 361 repeals Article 194 whenever the Governor addresses the House. B. The Governor is a component under Article 168 but is not a member of either House. C. The Governor is outside the State legislature for all purposes. D. Article 194 applies only to Parliament.

Answer: B.

Explanation: [FACT] Membership, not mere inclusion in the legislative composition, controls member privilege.

OM7. Nomination

In a bicameral State, the Governor nominates:

A. one-third of the Legislative Council. B. all members representing graduates and teachers. C. one-sixth of the Legislative Assembly. D. one-sixth of the Legislative Council.

Answer: D.

Explanation: [FACT] Article 171 reserves one-sixth of the Council for gubernatorial nominees with specified knowledge/experience.

OM8. Article 166

Which statement is correct?

A. Every order in the Governor's name must have been personally decided by the Governor. B. Business rules are framed by the State Assembly alone. C. State executive action is expressed in the Governor's name and authenticated under rules, without implying personal decision-making. D. Article 166 makes the Governor the political head of every department.

Answer: C.

Explanation: [FACT] Article 166 provides form, authentication and allocation/transaction rules for responsible government.

OM9. Article 163 default

The constitutional default is that the Governor:

A. may reject every advised decision without reasons. B. is bound only by directions of the Union Home Ministry. C. acts independently whenever political controversy exists. D. acts on the aid and advice of the CM-led Council except in a narrow recognised discretionary field.

Answer: D.

Explanation: [FACT] Article 163 and *Shamsher Singh* establish advice as the norm. Discretion is the exception.

OM10. Discretion

Which is the best example of constitutionally recognised gubernatorial discretion?

A. Selecting individual ministers contrary to the CM's advice. B. deciding which faction is the real political party. C. Reserving an appropriate State Bill for the President under Article 200. D. rewriting the State budget.

Answer: C.

Explanation: [FACT] Reservation is a recognised discretionary field. Party identity and ordinary policy belong to other institutions.

OM11. Shamsher Singh

The main proposition of *Shamsher Singh* for this topic is:

A. Article 356 is wholly non-justiciable. B. the President and Governor are constitutional heads ordinarily acting on ministerial advice. C. every Governor must be elected. D. the Governor may pardon a court-martial sentence.

Answer: B.

Explanation: [FACT] The case prevents formal vesting from becoming personal executive rule.

OM12. S.R. Bommai

Which proposition is most closely associated with *S.R. Bommai*?

A. A Legislative Council must exist in every State. B. Article 200 creates automatic deemed assent. C. Article 356 is reviewable and disputed majority should ordinarily be tested on the House floor. D. A common Governor is unconstitutional.

Answer: C.

Explanation: [FACT] *Bommai* constitutionalised review and floor-test discipline and recognised federalism as Basic Structure.

OM13. Rameshwar Prasad

The case principally warns that:

A. courts cannot review an Assembly dissolution. B. the Governor must always invite the single largest party. C. apprehension of future horse-trading cannot replace objective constitutional material for dissolution. D. every post-election coalition is illegal.

Answer: C.

Explanation: [FACT] The Bihar dissolution based on anticipated conduct was held unconstitutional/*mala fide*.

OM14. Nabam Rebia

For gubernatorial power, *Nabam Rebia* supports which rule?

A. every Speaker-removal question is finally settled. B. summoning, prorogation and messages are normally advice-bound; discretion cannot be self-expanded. C. the Governor may adjudicate Tenth Schedule petitions. D. Article 174 is wholly personal to the Governor.

Answer: B.

Explanation: [FACT] The case narrows Article 163 discretion. [CURRENT/LIMIT] The Speaker-removal issue was referred in *Subhash Desai* and is treated as unresolved here.

OM15. Subhash Desai

Which statement is correct?

A. The Court disqualified the relevant legislators itself. B. The Court restored the previous Maharashtra government. C. The Governor may call a floor test to decide internal party leadership. D. A floor test needs objective material indicating possible loss of House confidence; intra-party dissent alone is insufficient.

Answer: D.

Explanation: [FACT] The objective-material rule is central. [LIMIT] No restoration followed because the CM resigned without facing the test.

OM16. Non-member CM

A person appointed Chief Minister without being a member of the State legislature must ordinarily secure membership within:

A. one year. B. the remainder of the Assembly term. C. six consecutive months. D. three months.

Answer: C.

Explanation: [FACT] Article 164(4) supplies the six-month rule. [LIMIT] It cannot cure an underlying disqualification.

OM17. Floor-test trigger

Which is the best constitutional basis for requiring a floor test?

A. Any newspaper report of party disagreement. B. Objective material creating a genuine doubt about Assembly confidence. C. A Governor's disagreement with policy. D. A request from the Union executive without State-level material.

Answer: B.

Explanation: [FACT] *Subhash Desai* requires objective material; *Bommai* identifies the floor as the forum.

OM18. Dismissal

When may dismissal of a State ministry become constitutionally defensible?

A. After demonstrable loss of confidence where the ministry refuses to resign. B. When a Legislative Council criticises the ministry. C. Immediately after a party faction changes its leader. D. Whenever the Governor dislikes a Bill.

Answer: A.

Explanation: [ANALYSIS] Pleasure does not displace Assembly confidence. Dismissal is exceptional after loss is properly established.

OM19. Caretaker government

Which statement is most accurate?

A. The Constitution codifies a complete caretaker-government chapter. B. Caretaker continuity rests mainly on convention, with restraint on avoidable irreversible action. C. Dissolution leaves the State without any Council of Ministers. D. A caretaker ministry cannot perform urgent administration.

Answer: B.

Explanation: [ANALYSIS] Continuity is necessary, while restraint preserves electoral fairness and successor choice.

OM20. Article 356 input

Which statement is correct?

A. The President may act on a Governor's report or otherwise, but the action remains subject to constitutional controls. B. A Governor's report automatically dissolves the Assembly. C. Courts cannot examine the material. D. Article 356 can be used only on a Governor's report.

Answer: A.

Explanation: [FACT] "Report or otherwise" is textual. Parliament and *Bommai* review remain.

OM21. Return of Bill

Under Article 200, the Governor may return for reconsideration:

A. a constitutional amendment passed by Parliament. B. only a Money Bill. C. a Finance Commission recommendation. D. a non-Money Bill.

Answer: D.

Explanation: [FACT] The first proviso's return mechanism excludes Money Bills.

OM22. Mandatory reservation

Reservation is constitutionally mandatory where the Governor considers that a Bill:

A. reduces a minister's salary. B. so derogates from High Court powers as to endanger its constitutional position. C. creates a Legislative Council. D. is opposed by the Union ruling party.

Answer: B.

Explanation: [FACT] The second proviso to Article 200 protects the High Court's constitutional position.

OM23. Article 201

After a reserved non-Money Bill is returned and repassed by the State legislature:

A. the Governor alone gives final assent without presidential consideration. B. it automatically becomes law. C. the Supreme Court must certify it. D. the President is not subject to an Article 200-style obligation to assent.

Answer: D.

Explanation: [FACT] Article 201 does not reproduce the direct-return obligation applicable to the Governor.

OM24. Current assent doctrine

As controlled to 18 August 2026, which statement is most accurate?

A. No court-created rigid timeline or automatic deemed assent applies, but prolonged unexplained indefinite inaction may attract limited mandamus. B. Courts may choose whether the Governor should assent or reserve. C. The

November 2025 opinion bindingly overruled every part of the April case. D. Every Bill is deemed assented after three months.

Answer: A.

Explanation: [CURRENT] This is the later narrow controlling position. [LIMIT] The opinion is advisory and non-binding.

OM25. Ordinance session condition

Which statement is correct?

A. A Governor may issue an ordinance on any Union List subject. B. An ordinance never needs to be laid before the legislature. C. An ordinance may be issued only after an Assembly rejects the same Bill. D. Article 213 is unavailable when the relevant legislature is fully in session under the constitutional session rule.

Answer: D.

Explanation: [FACT] The power bridges a session gap and remains limited by legislative competence and laying.

OM26. D.C. Wadhwa

Routine serial re-promulgation was described as:

A. an exercise of legislative privilege. B. a non-justiciable political question. C. a fraud on the Constitution. D. a constitutional convention.

Answer: C.

Explanation: [FACT] The case condemns executive repetition used to avoid the legislature.

OM27. Krishna Kumar Singh

Which proposition is correct?

A. Laying an ordinance is optional. B. Every lapsed ordinance creates permanent rights. C. Only a three-judge Bench decided the case unanimously. D. Laying is mandatory, re-promulgation subverts legislative supremacy and satisfaction is reviewable at constitutional limits.

Answer: D.

Explanation: [FACT] The seven-judge, 5:2 decision strengthened legislative control and rejected automatic enduring effects.

OM28. Death sentence and Article 161

The Governor:

A. may pardon a death sentence and a court-martial sentence. B. has no clemency role in death cases. C. may deal with court-martial but not State offences. D. cannot pardon a death sentence but may suspend, remit or commute it.

Answer: D.

Explanation: [FACT] This is the precise Article 161-Article 72 distinction.

OM29. Article 167

Which is an express duty of the Chief Minister?

A. countersign every judicial order. B. appoint the Advocate General personally. C. Communicate Council decisions and furnish information sought by the Governor. D. Obtain Legislative Council confidence every month.

Answer: C.

Explanation: [FACT] Article 167 also permits the Governor to require collectivisation of an individual minister's unconsidered decision.

OM30. Collective responsibility

The State Council of Ministers is collectively responsible to:

A. the Legislative Council. B. the Legislative Assembly. C. both Houses in equal measure. D. the Governor personally.

Answer: B.

Explanation: [FACT] Article 164(2) locates confidence in the popularly elected Assembly.

OM31. Ministry-cap base

The maximum State ministry under Article 164(1A) is calculated with reference to:

A. combined membership of both State Houses. B. total membership of the Legislative Assembly. C. elected Assembly members excluding vacancies. D. a number fixed by the Governor.

Answer: B.

Explanation: [FACT] The cap is 15% of total Assembly membership and includes the CM.

OM32. Minimum ministry

The constitutional minimum number of State ministers is:

A. 10. B. 6. C. 8. D. 12.

Answer: D.

Explanation: [FACT] State ministries have a minimum of 12; the Union has no equivalent constitutional minimum.

OM33. Tribal Welfare Minister

Which set is covered by the Article 164 tribal-welfare-minister rule?

A. Rajasthan, Gujarat, Maharashtra and Goa. B. Chhattisgarh, Jharkhand, Madhya Pradesh and Odisha. C. All States having Scheduled Areas. D. Bihar, Assam, Meghalaya and Nagaland.

Answer: B.

Explanation: [FACT] Recall CJMO. [LIMIT] The rule is not a general list of every State with tribal population or Scheduled Areas.

OM34. University Chancellor

Which statement is accurate?

A. A Chancellor role exists only where the relevant State statute creates it. B. Article 153 makes every Governor Chancellor of all universities. C. The role is part of Article 161. D. Parliament alone may define every State university Chancellor.

Answer: A.

Explanation: [FACT] The Chancellor hat is statutory, not inherent in the Constitution.

OM35. Reform commissions

How should Sarkaria, Punchhi and NCRWC recommendations be used?

A. As reform proposals supporting neutral appointment, tenure security and bounded discretion. B. As proof that every Governor must be elected. C. As binding constitutional amendments already in force. D. As Supreme Court orders that remove Article 156.

Answer: A.

Explanation: [LIMIT] They are persuasive reform evidence, not law.

OM36. Advice-binding trap

Which is the most precise statement?

A. The Governor may ignore advice in every legislative matter. B. Article 163 gives unlimited personal discretion. C. Advice is not expressed in the same binding terms as for the President, but constitutional practice and case law make advice the norm and discretion narrow. D. Ministerial advice is expressly binding on the Governor in exactly the same words as Article 74.

Answer: C.

Explanation: [FACT] The textual difference must be preserved without converting it into general discretion.

Remedial MCQs - strict D -> B -> D -> A rotation

R1. Age trap

The minimum age for appointment as Governor is:

A. 30 years. B. 40 years. C. 25 years. D. 35 years.

Answer: D.

Remedy: Link Article 157 with the fixed number 35.

R2. Nomination trap

The Governor's one-sixth nomination applies to:

A. Inter-State Council. B. Legislative Assembly. C. Legislative Council. D. Rajya Sabha.

Answer: C.

Remedy: Governor -> Council; President -> Rajya Sabha nomination under a different provision.

R3. Tenure trap

Which statement is correct?

A. Five years is subject to President's pleasure. B. Five years cannot be shortened. C. Transfer is constitutionally prohibited. D. The Assembly removes by impeachment.

Answer: A.

Remedy: Read Article 156 as pleasure first, five-year outer term second.

R4. Immunity trap

During the term:

A. personal civil claims need no notice. B. all State action is immune. C. Article 194 makes the Governor a House member. D. criminal proceedings cannot be instituted or continued against the Governor.

Answer: D.

Remedy: Article 361 protects the office-holder; it does not erase review of government action.

R5. Return trap

The Governor's Article 200 return power applies to:

A. a non-Money Bill. B. a Money Bill only. C. a Union Budget. D. a constitutional-amendment Bill.

Answer: A.

Remedy: Return = non-Money Bill; reservation is a separate route.

R6. Reserved Bill trap

After re-passage of a Bill returned under Article 201:

A. the President is not constitutionally compelled to assent. B. the Governor becomes final decision-maker. C. the Bill becomes a Money Bill. D. assent is automatically deemed.

Answer: A.

Remedy: Do not import Article 200's direct-return language into Article 201.

R7. 2025 doctrine trap

Which current statement is accurate?

A. Courts must impose a three-month clock. B. April 2025 has no continuing relevance because it was formally overruled. C. No rigid judicial clock/deemed assent, but prolonged unexplained inaction may receive limited review. D. Inaction is entirely non-justiciable.

Answer: C.

Remedy: Later controlling position narrowly; advisory, not an overruling.

R8. Floor-test trap

A Governor should not use a floor test:

A. merely to resolve an intra-party leadership dispute. B. where objective numbers create genuine doubt. C. after a ministry volunteers to prove confidence. D. after an express coalition withdrawal.

Answer: A.

Remedy: *Subhash Desai* separates House confidence from party faction.

R9. Non-member trap

A non-member minister ordinarily ceases after:

A. six consecutive months without entering the legislature. B. one Assembly session. C. three months. D. one year.

Answer: A.

Remedy: Article 164(4) mirrors the Union six-month rule.

R10. Cap trap

The 15% State ministry cap uses:

A. State population. B. total Legislative Assembly membership. C. elected Assembly members only. D. both Houses together.

Answer: B.

Remedy: Assembly is both the cap base and the confidence House.

R11. Clemency trap

Which statement is correct?

A. Governor may pardon court-martial sentences. B. Governor may pardon every death sentence. C. Article 161 is wider than Article 72. D. Governor may suspend/remit/commute a death sentence but cannot pardon it.

Answer: D.

Remedy: Article 72 is broader on court-martial and death pardon.

R12. Referred-question trap

According to the controlling Core, the *Nabam Rebia* issue concerning a Speaker facing a removal notice:

A. was referred to a larger seven-judge Bench and remains unresolved. B. was decided by the Governor. C. was abolished by constitutional amendment. D. was finally affirmed without qualification in *Subhash Desai*.

Answer: A.

Remedy: Separate *Nabam Rebia*'s Governor-advice proposition from the referred Speaker-removal issue.

PYQS AND ANSWER PRACTICE

Verified routed PYQs

PYQ 1 - UPSC GS-II 2022, Q12 - direct owner

Verified neutral demand: Discuss the Governor's legislative powers and the legality/constitutional implications of re-promulgating ordinances. **15 marks | 250 words**

Demand decoding

- "Discuss" requires the legislative-power map plus focused treatment of ordinance re-promulgation.
- The answer must distinguish valid ordinance power from its serial abuse.
- The current assent doctrine is a value addition, not a substitute for Article 213.

Model answer

Claim: [FACT] The Governor is a component of the State legislature under Article 168, but as a constitutional head ordinarily exercises legislative powers on ministerial advice. These powers preserve continuity and scrutiny; they

become problematic when used to bypass the elected House.

Named evidence and analysis: Under Articles 174-176, the Governor summons/prorogues the legislature, may dissolve the Assembly, sends messages and delivers the special address. Article 171 permits nomination of one-sixth of a Legislative Council. Article 200 permits assent, withholding, return of a non-Money Bill or reservation for the President; the High Court-protection proviso makes reservation mandatory in its field. Article 201 then governs presidential action. [CURRENT] The 20 November 2025 Article 143 opinion rejects rigid judicial assent timelines and automatic deemed assent, while allowing limited mandamus against prolonged unexplained inaction.

Article 213 permits an ordinance when the session condition is met and immediate action is necessary. It has Act-like force but must be laid and ceases six weeks after reassembly. *D.C. Wadhwa* called routine re-promulgation a "fraud on the Constitution." *Krishna Kumar Singh* made laying mandatory, reaffirmed review and rejected automatic survival of every lapsed ordinance's effects.

Qualification and verdict: [LIMIT] Ordinances remain legitimate emergency bridges; occasional fresh circumstances may require new law. But serial reissue to avoid legislative scrutiny subverts representative government. The Governor's legislative legitimacy therefore lies in constitutional facilitation, not executive law-making by repetition.

Examiner comment: Do not write only on Article 200. The question's second half requires Article 213, six-week control and both ordinance cases.

Evidence chain: Article 168 -> Articles 174-176/171/200-201 -> Article 213 -> *Wadhwa* -> *Krishna Kumar Singh* -> current 2025 assent qualification.

Why this earns marks: It answers both limbs, uses more than six precise constitutional/case anchors, explains what abuse does and ends with a qualified verdict.

PYQ 2 - UPSC GS-II 2020, Q3 - cross-owned federalism application

Question: How far have cooperation, competition and confrontation shaped the nature of federation in India? **10 marks | 150 words | Primary owner: Polity 12; application here: Governor-State friction**

Model answer

Claim: [ANALYSIS] Indian federalism is neither permanently cooperative nor permanently coercive; all three modes operate together.

Named evidence: Cooperation appears in the GST Council, Finance Commission transfers and intergovernmental crisis coordination. Competition appears in State welfare and investment innovation. Confrontation appears in Governor assent disputes, Article 356 reports, CBI consent, fiscal conditions and river conflicts.

Analysis: Governor disputes reveal why institutional design matters: Article 155 creates Union appointment, Article 156 pleasure tenure and Article 200 a gate in State law-making. Yet *S.R. Bommai* protects federalism as Basic Structure and subjects Article 356 to review; the 2025 assent opinion permits limited action against prolonged unexplained delay.

Qualification and verdict: [LIMIT] Conflict is not itself anti-federal; federalism expects disagreement. It becomes destructive when constitutional offices substitute partisan delay for reasoned decision. India is therefore a bargaining federation whose success depends on keeping confrontation institutional, reviewable and negotiable.

Examiner comment: Use the Governor as one application, not as the whole federalism answer.

Evidence chain: GST/Finance Commission -> Articles 155/156/200 -> *Bommai* -> 2025 assent control.

Why this earns marks: It covers all three terms, links a topic-specific example to federal theory and qualifies confrontation.

PYQ 3 - UPSC GS-II 2022, Q13 - cross-owned federalism application

Question: While national political parties in India favour centralisation, regional parties favour State autonomy. Comment. **15 marks | 250 words | Primary owner: Polity 12; application here: Governor reform**

Model answer

Claim: [ANALYSIS] The proposition identifies a recurring incentive but overstates ideological permanence. Parties often change federal preferences with their location in power.

Named evidence: A national party controlling the Union may prefer uniform policy, central agencies, conditional schemes and the leverage of Articles 155-156, 200 and 356. Regional parties commonly seek greater tax autonomy, fewer scheme conditions, neutral Governors and restraint in Union intervention. Coalition eras after 1989 increased regional bargaining at the Union.

Analysis: The Governor illustrates the asymmetry. A Union-appointed, pleasure-tenure constitutional head controls sensitive formation, assent and breakdown gateways. Rival-party States therefore perceive delay or crisis intervention as centralisation. Sarkaria, Punchhi and NCRWC proposed neutral selection, consultation and tenure reform precisely to reduce this distrust.

Counter-evidence: National parties demand autonomy when in opposition in States; regional parties may centralise power within their own governments. GST demonstrates acceptance of pooled authority, while *Bommai* prevents either party type from erasing the federal Basic Structure.

Verdict: Party family influences rhetoric, but office, coalition arithmetic and issue-specific interest explain conduct better. Federal trust needs institutions that remain neutral whichever party occupies the Union.

Examiner comment: "Comment" needs a clear judgement; do not merely list national and regional parties.

Evidence chain: Party incentives -> Articles 155/156/200/356 -> coalition era -> commissions -> *Bommai*.

Why this earns marks: It accepts, tests and qualifies the proposition with a Governor-specific mechanism and named reforms.

PYQ 4 - UPSC GS-II 2023, Q13 - cross-owned emergency application

Question: Account for the legal and political factors responsible for the reduced frequency of Article 356 use since the mid-1990s. **15 marks | 250 words | Primary owner: Polity 14; application here: Governor reports and floor tests**

Model answer

Claim: [FACT] Article 356 declined without textual repeal because law raised the constitutional cost and political federalisation raised the electoral cost of partisan dismissal.

Named legal evidence: *S.R. Bommai* (1994) made proclamations reviewable, required relevant material, prioritised a floor test for majority disputes and permitted restoration after invalid action. *Rameshwar Prasad* (2006) held the Bihar dissolution based on anticipated horse-trading unconstitutional. The Governor's report thus became evidence subject to scrutiny, not an unchallengeable verdict.

Named political evidence: Coalition Union governments often depended on regional parties; strong State parties raised parliamentary and electoral costs. Media, opposition and civil-society scrutiny made partisan removals reputationally expensive. Sarkaria and Punchhi norms reinforced warning, speaking reports and last-resort use.

Analysis: Legal review changed incentives at Raj Bhavan and the Union; political dependence made misuse threaten government survival.

Qualification and verdict: [LIMIT] Article 356 still contains "report or otherwise," and disputes have not disappeared. Reduced use reflects judicial discipline plus bargaining federalism, not the disappearance of centralising power.

Examiner comment: Separate legal from political causes and identify the Governor's report as an input, not the final constitutional act.

Evidence chain: *Bommai* -> floor test/review/restoration -> *Rameshwar Prasad* -> coalition/regional parties -> commission norms.

Why this earns marks: It directly "accounts for" decline through two causal groups and preserves the textual qualification.

PYQ 5 - UPSC GS-II 2024, Q13 - cross-owned Centre-State application

Question: What recent changes have occurred in Centre-State relations, and what measures can build trust and strengthen federalism? **15 marks | 250 words | Primary owner: Polity 13; application here: neutral Governor**

Model answer

Claim: [ANALYSIS] Centre-State relations have become more institutionally shared yet more politically contested: GST and Finance Commission rules coexist with disputes over cesses, central agencies, legislation and Governors.

Named evidence: NITI Aayog replaced plan-era allocation architecture; GST pooled indirect-tax authority; Finance Commission transfers remain rules-based. At the same time, Governor assent, statutory Chancellor roles, CBI consent, borrowing conditions and centrally sponsored schemes generate distrust. *Bommai* protects federalism through review; the November 2025 assent opinion rejects deemed assent but permits limited mandamus against prolonged unexplained inaction.

Measures: Convene the Inter-State Council regularly; consult States on Concurrent subjects; use transparent fiscal transfers; follow Sarkaria/Punchhi neutrality norms; publish reasoned gubernatorial decisions; track Bills without inventing deemed assent; use prompt floor tests; clarify Chancellor powers in State statutes; and strengthen neutral dispute processes.

Qualification and verdict: [LIMIT] No single reform eliminates political conflict, and commission proposals are not law. Trust is produced through repeated experience of consultation, reasons, predictable finance and non-partisan constitutional offices.

Examiner comment: Each reform must answer a diagnosed problem. Avoid generic calls for "cooperative federalism."

Evidence chain: GST/NITI/Finance Commission -> Governor/CBI/fiscal disputes -> *Bommai* -> 2025 assent control -> targeted reforms.

Why this earns marks: It addresses changes and measures, supplies current legal control and links Governor reform to the federal trust deficit.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2018 GS-I Q41

Verified neutral demand: Criminal proceedings against a Governor and protection of gubernatorial emoluments.

Provenance: Local routing ledger; older official key unavailable locally. No answer letter is invented.

Doctrinal solution

- [FACT] Article 361 bars institution or continuation of criminal proceedings during the term.
- [FACT] No arrest or imprisonment process may issue during the term.
- [FACT] Article 158 protects emoluments and allowances from diminution during the term.
- [LIMIT] Immunity is temporary/personal; it does not erase liability forever or immunise governmental action from review.

Elimination rule: Reject any statement permitting criminal prosecution during the term or allowing reduction of protected emoluments during that term.

Prelims route 2 - 2019 GS-I Q66

Verified neutral demand: Recommendations concerning the qualities/appointment of an ideal Governor.

Provenance: Local routing ledger; older official key unavailable locally. No answer letter is invented.

Doctrinal solution

- [FACT] The Constitution itself requires citizenship and age 35, not outsider status or CM consultation.
- [ANALYSIS] Sarkaria recommended an eminent person, outsider to the State, detached from local politics and selected after consultation with the CM.
- [ANALYSIS] Punchhi and NCRWC proposed additional appointment/tenure insulation.
- [LIMIT] These are recommendations, not enacted qualifications.

Elimination rule: Distinguish constitutional eligibility from commission criteria; reject options presenting proposals as law.

Prelims route 3 - 2025 GS-I Q54

Verified neutral demand: Governor's discretion and the President's role where a State Bill is reserved. **Provenance:** Official 2025 Set-A key exists locally, but the answer is not recorded in the authoritative Core and is not inferred here.

Doctrinal solution

- [FACT] Reserving a Bill for the President under Article 200 is a constitutionally recognised discretionary field.
- [FACT] Mandatory reservation applies to the High Court-endangering category in the second proviso.
- [FACT] Under Article 201 the President may assent, withhold, or for a non-Money Bill direct return.
- [FACT] The President is not obliged to assent after re-passage of a reserved Bill.

Elimination rule: Reject any claim that reservation is always bound by ordinary advice or that re-passage automatically compels presidential assent.

Prelims route 4 - 2025 GS-I Q59

Verified neutral demand: Governor's immunity compared with immunity for words spoken in a State legislature.

Provenance: Official 2025 Set-A key exists locally, but the answer is not recorded in the authoritative Core and is not inferred here.

Doctrinal solution

- [FACT] Article 361 protects the Governor in specified ways during the term.
- [FACT] Article 194 speech/vote immunity belongs to members of the State legislature.
- [FACT] The Governor is part of the legislature under Article 168 but is not a member of a House.

Elimination rule: Reject any option transferring Article 194 member privilege to the Governor merely because Article 168 includes the office in the legislature.

Original solved Mains practice

M1. "The Governor's discretion is constitutionally necessary but politically dangerous." Examine. (10 marks, 150 words)

Directive fidelity: "Examine" requires the need, the constitutional limits, evidence of danger and a graded verdict.

Model answer

Claim: [FACT] Article 163 preserves limited gubernatorial discretion for hung Assemblies, Bill reservation and constitutional-breakdown reports.

Named evidence: *Shamsher Singh* makes advice the norm. *Nabam Rebia* prevents self-expanded discretion over sessions. *S.R. Bommai* requires floor testing and review of Article 356 material. *Subhash Desai* requires objective material and bars a floor test for intra-party dissent.

Analysis: Discretion restarts responsible government when no ministry clearly commands confidence. It becomes dangerous because Articles 155-156 combine Union appointment with pleasure tenure.

Qualification and verdict: [LIMIT] Not every disputed decision is unconstitutional, and Article 163 is not empty. Yet legitimacy depends on narrow purpose, recorded objective material and rapid transfer of the decisive question to the Assembly. Discretion is therefore a **procedural safety valve, not a competing political mandate**.

Examiner comment: A 10-marker should not list every power. Centre the answer on the default-exception-control structure.

Evidence chain: Article 163 -> *Shamsher Singh* -> *Nabam Rebia* -> *Bommai* -> *Subhash Desai*.

Why this earns marks: It supplies four named cases, explains both necessity and danger, states a qualification and answers the proposition directly.

M2. Explain why the Chief Minister and State Council of Ministers constitute the real executive. (10 marks, 150 words)

Directive fidelity: "Explain why" requires a constitutional mechanism, not merely the labels "real" and "nominal."

Model answer

Claim: [FACT] Although Article 154 vests power in the Governor, Articles 163-164 locate political authority in the CM-led Council responsible to the Assembly.

Named evidence: Other ministers are appointed on CM advice; the CM allocates portfolios, chairs the Council and secures individual exits. Article 164(2) makes the Council stand or fall with Assembly confidence. Article 167 makes the CM the communication and information link. Article 166's name clause does not create personal gubernatorial

policy.

Analysis: The ministry draws authority from the Assembly, controls policy and administration, and bears collective accountability. The Governor supplies constitutional form and limited process supervision.

Qualification and verdict: [LIMIT] The Governor is not irrelevant: hung-House appointment, Bill reservation and Article 356 reporting remain sensitive functions. Nevertheless, ordinary government belongs to the CM-Council because power follows responsibility. The State executive is therefore formally gubernatorial but substantively ministerial.

Examiner comment: Connect each power to Assembly responsibility; do not treat "real executive" as a memorised definition.

Evidence chain: Articles 154/163 -> Article 164(2) -> Article 166 -> Article 167.

Why this earns marks: It uses four constitutional provisions to prove, rather than assert, the real-executive conclusion.

M3. "Article 200 creates a constitutional gate, not a gubernatorial pocket veto." Discuss in light of the 2025 assent cases. (15 marks, 250 words)

Directive fidelity: "Discuss" requires Article 200's options, the democratic concern, both dated 2025 controls and a balanced conclusion.

Model answer

Claim: [FACT] Article 200 places the Governor within State law-making to ensure constitutional scrutiny, but its listed choices do not expressly create a power of indefinite non-decision.

Named evidence: A presented Bill may receive assent, withholding, return for reconsideration if it is not a Money Bill, or reservation for the President. Reservation is mandatory where the Bill would so derogate from High Court powers as to endanger its constitutional position. Under Article 201 the President may assent, withhold or direct return of a non-Money Bill; unlike the Article 200 direct-return loop, re-passage does not compel presidential assent.

Current evidence and analysis: In *State of Tamil Nadu v. Governor of Tamil Nadu* (8 April 2025, 2025 INSC 481), the Court prescribed timelines and used deemed assent on the facts, responding to constitutional paralysis. The later five-judge Article 143 opinion (20 November 2025, 2025 INSC 1333) held that courts cannot add rigid timelines or automatic deemed assent to Articles 200-201. Yet prolonged, unexplained and indefinite inaction remains open to limited review and mandamus requiring action.

Qualification: [LIMIT] The later opinion is advisory and non-binding; it did not "overrule" the April judgment. A court may require decision but not choose assent, withholding, return or reservation.

Verdict: Article 200 is a scrutiny gate, not a pocket veto. Federal legitimacy requires constitutional expedition and reasons, while separation of powers forbids judicial invention of a new deemed-assent option.

Examiner comment: Preserve the April-November sequence and the advisory-status qualification.

Evidence chain: Article 200 options -> mandatory HC proviso -> Article 201 distinction -> April 2025 -> November 2025 -> limited mandamus.

Why this earns marks: It uses the exact current legal control, explains both democratic effectiveness and separation-of-powers limits, and avoids the prohibited "overruled" claim.

M4. Frame a constitutionally proper response to a hung Assembly and a later claim that the ministry has lost confidence. (15 marks, 250 words)

Directive fidelity: The question requires a sequential government-formation and confidence-loss protocol, with cases and limits.

Model answer

Claim: [ANALYSIS] The Governor's role is temporary and procedural: identify a plausible confidence-holder, then let the Legislative Assembly decide who governs.

Appointment stage: Article 164(1) authorises appointment of the CM. With a clear majority, the recognised leader must be invited. In a hung House, the Governor should examine objective support such as a pre-poll alliance, coalition agreement or credible support commitments, appoint the person most likely to command confidence and require a

prompt floor test. Sarkaria-style preference guides promote neutrality but are recommendations, not an inflexible legal code.

Later confidence claim: *S.R. Bommai* makes the floor the ordinary forum. Objective events such as withdrawal of coalition support, resignations affecting numbers or a credible rival claim may justify a test. *Subhash Desai* bars reliance on intra-party dissent or factional letters alone and holds that the Governor cannot use a test to decide an internal party dispute. Speaker disqualification and Election Commission symbol proceedings remain separate tracks.

Failure stage: If the ministry loses and resigns, the Governor should explore a viable alternative before dissolution. If it refuses to resign after demonstrated loss, dismissal may follow. *Rameshwar Prasad* warns against pre-emptive dissolution based on anticipated horse-trading.

Qualification and verdict: [LIMIT] Political configurations vary, so rigid invitation arithmetic can mislead. The constant rules are objective material, equal treatment, prompt floor proof and no partisan adjudication. Appointment opens the door; Assembly confidence keeps it open.

Examiner comment: Sequence is essential: invitation -> floor test -> alternative -> dissolution.

Evidence chain: Article 164 -> objective support -> *Bommai* -> *Subhash Desai* -> *Rameshwar Prasad*.

Why this earns marks: It gives an operational protocol, five named anchors, institutional separation and a qualified verdict.

M5. Does the pleasure doctrine make the Governor and State ministers agents of the appointing authority? Analyse. (15 marks, 250 words)

Directive fidelity: "Analyse" requires separating gubernatorial pleasure from ministerial pleasure and tracing each through parliamentary responsibility.

Model answer

Claim: [FACT] "Pleasure" appears in two different relationships and cannot be read literally as unlimited personal command. Article 156 places the Governor during the President's pleasure; Article 164 places ministers during the Governor's pleasure.

Governor: The five-year term is expressly subject to presidential pleasure. Transfer and reappointment are possible, and no State-legislature removal process exists. [ANALYSIS] This insecurity can create perceived dependence on the Union, particularly in assent, government formation and Article 356 disputes. Sarkaria, Punchhi and NCRWC consequently proposed consultative selection and stronger tenure protection.

Ministers: Article 164's pleasure operates inside responsible government. Other ministers are appointed on CM advice; the CM ordinarily secures an individual minister's removal. The whole Council, however, survives on Legislative Assembly confidence under Article 164(2). A Governor cannot dismiss a majority-holding CM merely by invoking pleasure.

Named judicial evidence: *Shamsher Singh* makes ministerial advice the default. *Bommai* and *Subhash Desai* shift confidence questions to objective material and the House floor.

Qualification: [LIMIT] The specified source owners do not support an expanded *B.P. Singhal* case gloss, so the safest legal statement remains that the Governor has no fixed enforceable tenure while every constitutional power is subject to rule-of-law limits.

Verdict: Pleasure creates dependence, but not agency in the private-law sense. For ministers it is democratically mediated by the CM and Assembly; for Governors its structural Union tilt justifies tenure and appointment reform.

Examiner comment: Do not merge Article 156 and Article 164 or say the Governor personally controls every minister.

Evidence chain: Article 156 -> Article 164(1)/(2) -> *Shamsher Singh* -> *Bommai/Subhash Desai* -> commissions.

Why this earns marks: It distinguishes two doctrines, explains their mechanisms and uses the source-bound case caution.

M6. Compare Articles 72 and 161 and assess the constitutional limits on the Governor's clemency power. (15 marks, 250 words)

Directive fidelity: "Compare and assess" requires common parameters, cases, the death/court-martial distinctions and review.

Model answer

Claim: [FACT] Articles 72 and 161 create parallel humanitarian powers, but presidential jurisdiction is broader.

Comparison: The President may grant pardon, reprieve, respite, remission or commutation in court-martial cases, Union-field offences and every death sentence. The Governor acts for offences against laws within State executive power. The Governor has no court-martial jurisdiction and cannot pardon a death sentence, though suspension, remission or commutation of that sentence is possible.

Named evidence: *Maru Ram* establishes that clemency is exercised on ministerial advice, defeating the notion of personal mercy. *Kehar Singh*, in the presidential context, shows that the executive may reconsider merits without becoming an appellate court. *Epuru Sudhakar* permits limited review for mala fides, arbitrariness, non-application of mind and relevant/irrelevant-material defects.

Analysis: Clemency corrects exceptional harshness, considers public policy and supplies a constitutional safety valve beyond strict judicial sentencing. Advice preserves democratic responsibility; review preserves legality.

Qualification: [LIMIT] Courts do not ordinarily substitute their preferred mercy outcome, and no automatic rule follows from delay in every category. Article 161 also cannot reach an offence outside the State executive field merely because the prisoner is held in that State.

Verdict: The Governor's power is substantial but jurisdictionally narrower and institutionally controlled: humanitarian discretion operates through the State Council, within subject-matter limits and under limited review.

Examiner comment: The death-sentence formula must be exact: no pardon, but suspension/remission/commutation.

Evidence chain: Article 72 field -> Article 161 field -> *Maru Ram* -> *Kehar Singh* -> *Epuru Sudhakar*.

Why this earns marks: It compares on identical parameters, uses three cases and preserves both jurisdiction and review qualifications.

M7. "The Governor's dual role is a bridge in constitutional theory but a fault line in federal practice." Critically examine and suggest reforms. (20 marks, 250 words)

Directive fidelity: "Critically examine and suggest" requires design, benefits, failures, counter-evidence and reforms linked to diagnosed defects.

Model answer

Claim: [ANALYSIS] The Governor links the Union-weighted federation to responsible State government: Article 155 supplies Union appointment, while Articles 154 and 163 make the office the State head. The same duality can facilitate coordination or generate divided-loyalty distrust.

Bridge function: The Governor ensures constitutional continuity, appoints a CM where no majority is clear, completes legislation, reserves sensitive Bills and reports exceptional breakdown. Article 167 information can warn without displacing elected policy. A statutory Chancellor role may support university oversight where State law provides.

Fault-line evidence: Article 156 pleasure tenure weakens perceived independence. Assent delay can suspend State legislation; factional formation disputes can alter government; an Article 356 report can trigger central takeover; Chancellor powers can create a parallel statutory executive. *Rameshwar Prasad* exposed speculative dissolution, while *Subhash Desai* rejected a floor test based on factional dissent.

Counter-controls: *Shamsher Singh* makes advice the norm; *Bommai* constitutionalises review and floor testing; the November 2025 assent opinion allows limited mandamus against prolonged unexplained inaction while rejecting deemed assent.

Reforms: Use consultative appointment; protect tenure or require compelling reasons; publish neutral hung-House criteria; record floor-test material; issue reasoned, trackable Bill decisions without invented deadlines; use Article 356 only after warning/floor process; and define Chancellor powers in State statutes. Sarkaria, Punchhi and NCRWC

support this direction.

Qualification and verdict: [LIMIT] Recommendations are not law, and over-codification may sacrifice flexibility. The office should be retained as a **neutral process guardian**, but its Union dependence must be offset by transparent reasons, tenure insulation and House-centred decision-making.

Examiner comment: Reform must map onto appointment, tenure, formation, assent, emergency and statutory-role defects.

Evidence chain: Articles 155/156/163/167 -> Article 200/356 -> *Rameshwar Prasad/Subhash Desai* -> *Bommai* -> 2025 opinion -> commissions.

Why this earns marks: It provides eight evidence units, a genuine counter-case, targeted reforms and a graded institutional verdict.

M8. Evaluate the ordinance power of the Governor as a test of executive necessity versus legislative supremacy. (20 marks, 250 words)

Directive fidelity: "Evaluate" requires criteria, legitimate uses, abuse mechanisms, case-law controls and a reasoned balance.

Model answer

Claim: [FACT] Article 213 is a constitutionally valid emergency bridge, not an alternative legislative chamber. Its legitimacy depends on genuine temporal necessity and prompt return to representative scrutiny.

Constitutional design: The Governor may promulgate when the session condition permits and immediate action is considered necessary. In a bicameral State, the power is unavailable when both Houses are in session. An ordinance has Act-like force but must remain within State legislative competence, comply with Fundamental Rights and obtain presidential instructions in specified sanction/reservation situations. It must be laid and ends six weeks after reassembly, earlier disapproval or withdrawal.

Necessity case: Public emergencies, urgent fiscal/legal gaps or immediate implementation needs may arise between sittings. Temporary law prevents administrative paralysis.

Supremacy danger: The executive can avoid debate, committee scrutiny and an uncertain Assembly majority. Serial re-promulgation converts a short bridge into executive legislation.

Named evidence: *D.C. Wadhwa* called routine re-promulgation a fraud on the Constitution. *Krishna Kumar Singh* (seven judges, 5:2) made laying mandatory, reaffirmed review, protected legislative supremacy and rejected automatic survival of every lapsed ordinance's effects.

Reform and qualification: Require publicly stated urgency, immediate laying, committee scrutiny and explanation of any fresh ordinance. [LIMIT] Courts should review competence, mala fides and constitutional abuse but not abolish the power or substitute their policy judgement.

Verdict: Article 213 is legitimate when it bridges time; it is unconstitutional in spirit and law when repetition bypasses representation. Necessity authorises the first step, but legislative accountability must control the destination.

Examiner comment: Include session condition, competence, presidential instructions, laying, six weeks and both cases.

Evidence chain: Article 213 preconditions -> Act-like force/competence -> laying/six weeks -> *Wadhwa* -> *Krishna Kumar Singh* -> urgency-and-scrutiny reform.

Why this earns marks: It evaluates against explicit criteria, presents both necessity and abuse, uses more than six precise anchors and gives proportionate reform.